

APEX INDUSTRIAL SUPPLY
1200 Industrial Parkway, Suite 400 | Columbus, OH 43215
Tel: (614) 555-0100 | www.apexindustrial.com

MASTER SUPPLY AGREEMENT
Contract ID: CTR-2025-1006

1. PARTIES

This Master Supply Agreement ('Agreement') is entered into as of January 29, 2025 between Apex Industrial Supply, Inc. ('Supplier'), a Delaware corporation with principal offices at 1200 Industrial Parkway, Suite 400, Columbus, OH 43215, and Caterpillar Inc. ('Customer'), for the supply of industrial products as described herein.

Customer Type: End Consumer
Customer Region: Northeast
Customer Contact: Robert Garcia, Procurement Manager

2. TERM AND EFFECTIVE DATE

This Agreement shall be effective from January 29, 2025 through January 29, 2028, a period of 3 years. Either party may terminate this Agreement with ninety (90) days written notice. Upon expiration, the Agreement shall automatically renew for successive one-year periods unless either party provides written notice of non-renewal at least sixty (60) days prior to the expiration date.

3. PRODUCTS AND PRICING

This Agreement covers products in the following categories: Abrasives, Safety.

Pricing shall be in accordance with the following volume-based tier structure:

Tier 1 (1-99 units): \$38.89 per unit
Tier 2 (100-499 units): \$35.78 per unit
Tier 3 (500+ units): \$33.06 per unit

Prices are subject to the annual price adjustment provisions described in Section 6. All prices are FOB Supplier's warehouse unless otherwise specified.

4. TRADE TERMS

Trade Type: Early Payment Discount
Trade Value: \$146,000.00
Payment Schedule: On Invoice
Payment Terms: Net 30

5. SPECIAL PROVISIONS (END-CONSUMER)

Vendor Managed Inventory (VMI): Supplier shall maintain minimum stock levels at Customer's facility as specified in Exhibit B.

Annual Price Escalation: Prices may be adjusted annually based on CPI-U index, capped at 3% per year.

6. GENERAL TERMS

Confidentiality: Both parties agree to maintain confidentiality of pricing, trade terms, and volume data disclosed under this Agreement.

Force Majeure: Neither party shall be liable for delays caused by circumstances beyond

reasonable control.

Governing Law: This Agreement shall be governed by the laws of the State of Ohio.

Entire Agreement: This Agreement, together with all Exhibits, constitutes the entire understanding between the parties.

APEX INDUSTRIAL SUPPLY, INC. CATERPILLAR INC.

Authorized Signature Authorized Signature
Date: January 29, 2025 Date: January 29, 2025